

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Butler	Team: Squad #04	CCRB Case #: 201802327	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 01/09/2018 8:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/9/2019	Precinct: 44		
Date/Time CV Reported Fri, 03/16/2018 10:00 AM	CV Reported At: Other City agency	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 03/26/2018 11:08 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Randy Kyrk	6830	948372	WARRSEC
2. DT3 Cornelius Oshea	741	935419	WARRSEC
3. DT3 Eric Healy	6774	947069	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Sean Kelly	1365	949162	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Randy Kyrk	Abuse: Detective Randy Kyrk did not obtain medical treatment for § 87(2)(b)	A . Unsubstantiated
B . DT3 Cornelius Oshea	Abuse: Detective Cornelius Oshea did not obtain medical treatment for § 87(2)(b)	B . Unsubstantiated
C . DT3 Eric Healy	Abuse: Detective Eric Healy did not obtain medical treatment for § 87(2)(b)	C . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint online with 311 on March 15, 2018. The complaint was received at IAB on March 16, 2018. The complaint was received at the CCRB on March 26, 2018.

On January 9, 2018, Det. Randy Kyrk, Det. Cornelius O'Shea, and Det. Eric Healy of the Bronx Warrant Squad arrested § 87(2)(b) on a parole warrant at § 87(2)(b) in the Bronx. The officers allegedly failed to obtain medical treatment for § 87(2)(b) (**Allegations A, B, and C: Abuse of Authority, Unsubstantiated**).

There is no video footage of this incident.

Findings and Recommendations

Allegation A – Abuse of Authority: Detective Randy Kyrk did not obtain medical treatment for § 87(2)(b)

Allegation B – Abuse of Authority: Detective Cornelius O'Shea did not obtain medical treatment for § 87(2)(b)

Allegation C – Abuse of Authority: Detective Eric Healy did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) was uncooperative with the investigation (BR 07). He was incarcerated at § 87(2)(b) at the time of the investigation and only provided an unverified phone statement (BR 01).

§ 87(2)(b)'s friend, § 87(2)(b) allegedly witnessed the incident and provided a verified statement (BR 02).

According to § 87(2)(b) (BR 01), there was an active parole warrant for his arrest during the incident. § 87(2)(b) exited § 87(2)(b) apartment and immediately encountered officers, identified by the investigation as Det. Kyrk, Det. O'Shea, Det. Healy, and Parole Officer Walker Fox of Department of Correction in the hall. Two or three of the officers grabbed § 87(2)(b)'s arms, held him against a wall, pulled his arms behind his back, and handcuffed him. § 87(2)(b) felt pain to his right hand after being handcuffed. He allegedly said, "My hand is feeling numb and hurting," in the presence of all the officers. One of the officers, who § 87(2)(b) could not describe except as a white male in plainclothes standing approximately 5'7" to 5'10" tall, allegedly said, "Take care of that when you get to § 87(2)(b)." The description § 87(2)(b) provided was insufficiently specific to distinguish this officer amongst the three identified officers. The officers escorted § 87(2)(b) to a Department of Correction facility, where correction officers took custody of him.

The correction officers allegedly escorted § 87(2)(b) to § 87(2)(b) on Rikers Island, where EMS spoke with him. § 87(2)(b) alleged that during subsequent medical appointments at § 87(2)(b) medical staff told him that his hand was "irregular" and "possibly broken." Department of Corrections staff brought § 87(2)(b) on two occasions to § 87(2)(b) for x-rays, though § 87(2)(b) did not know the results. § 87(2)(b) scheduled a third appointment with § 87(2)(b) but DOC staff never ultimately brought him back for reasons unknown to § 87(2)(b). DOC then transferred § 87(2)(b) to § 87(2)(b) where medical staff allegedly told § 87(2)(b) that his pinky was fractured. § 87(2)(b) then moved to § 87(2)(b), where he complained of the injury to his hand and received further x-rays, the results of which § 87(2)(b) did not know. NYS DOC ultimately transferred § 87(2)(b) again to § 87(2)(b).

§ 87(2)(b) refused to sign medical release forms, so the investigation was unable to obtain documentation of his alleged injury (BR 07).

According to § 87(2)(b) he witnessed § 87(2)(b)'s apprehension. § 87(2)(b) heard § 87(2)(b) complain of pain to his hand. § 87(2)(b) did not hear the officers respond to § 87(2)(b)'s complaint and did not know whether § 87(2)(b) obtained medical treatment for his allegedly injury.

Documentation from Department of Correction (BR 09) and from the NYPD (BR 08) confirmed that there was an active parole warrant for § 87(2)(b) during the incident.

Det. Kyrk, Det. O'Shea, and Det. Healy (BR 03-05) were consistent with § 87(2)(b) in describing the circumstances of his apprehension, but they all denied that they refused to provide medical treatment to him. They denied that § 87(2)(b) had any visible injury or that he complained of injury. Det. Kelly denied that he entered the apartment building and denied that he witnessed § 87(2)(b)'s apprehension (BR 06).

The officers all stated that Department of Correction staff members interview all parole violators before accepting custody of them and that DOC refuses to accept prisoners who complain of injury or request medical treatment. All officers said that Department of Correction staff interviewed § 87(2)(b) and accepted him into their custody without incident.

Parole Officer Fox provided a statement consistent with the officers (BR 10). Documents obtained from the NYPD make no mention of any visible injury to § 87(2)§ 87(2)(b) or of any complaint of pain. Det. Kyrk prepared an apprehension form, which notes only that § 87(2)(b) was apprehended without incident (BR 13).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). Therefore, it is recommended that **Allegations A, B, and C** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one prior CCRB complaint and has been named as a victim in three allegations (BR 11):
 - § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b).
- Det. Healy has been a member of service for nine and has been a subject in eight prior CCRB complaints and 15 prior allegations, two of which were substantiated.
 - Case 201403575 involved one substantiated allegation of a frisk and one substantiated allegation of a stop against Det. Healy. The Board recommended Command Discipline B for the frisk, and the NYPD imposed Command Discipline A. The Board recommended Command Discipline B for the stop, and the NYPD imposed no discipline.
 - § 87(2)(g)
§ 87(2)(g)
- Det. Kyrk has been a member of service for eight and has been a subject in seven prior CCRB complaints and nine allegations, none of which was substantiated. § 87(2)(g)
§ 87(2)(g)
- Det. O'Shea has been a member of service for 13 years and has been a subject in five prior CCRB complaints and five allegations, one of which was substantiated.

- Case 201600660 involved one substantiated allegation of an entry of premises against Det. O'Shea. The Board recommended Command Discipline B, and the NYPD imposed Command Discipline A.
- § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

This complaint was not suitable for mediation. On June 22, 2018, a Notice of Claim request was submitted to the Comptroller's Office, and the result will be added to the case file upon receipt at the agency. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date